

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, July 09, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, July 09, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03432	Wendy Shaw vs Juan Prado
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Order to Show Cause Re: Renew Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed June 24, 2026.

23CV-02109	Premier Glass & Aluminum, Inc., et al. vs Titans Managing Constructors, Inc., et al.
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Status Conference

CONTINUED pursuant to the declaration filed June 12, 2026, for further status conference to November 19, 2026, at 8:15 a.m. in Courtroom 8 to allow time for mediation.

24CV-05444 Hunt Farms, LLC, et al. vs Cassabon Fung and Company, Inc., et al.

Motion to Stay Civil Action Proceedings Pending Criminal Proceedings

Defendant's motion for a stay of the civil proceedings is GRANTED.

Considering the particular circumstances in this matter and in weighing the competing interests, including taking into consideration the fact that the Fifth Amendment rights of Defendant and Cross-Defendant Juana Torres are implicated, the Court finds a stay is appropriate pending litigation of the related criminal matter.

The Court will sign the order lodged on April 9, 2026.

A status conference is scheduled for January 12, 2027, at 8:15 a.m. in Courtroom 8.

25CV-03544 Samir Soliman vs BSR Trucking Inc., et al.

Order to Show Cause Re: Sanctions for Attorney Sean Quint

Appearance required.

Order to Show Cause Re: Contempt

Appearance required.

25CV-04395 Alexis Solorio Causor, et al. vs Geico Insurance Company

Status Conference re: Arbitration.

Appearance required. Appear to address status of arbitration and whether this matter may be closed.

25CV-04438 Andres Sifuentes, Junior vs Nonprofits Insurance Alliance of California

Status Conference re: Arbitration.

Appearance required. Appear to address status of arbitration and whether this matter may be closed.

25CV-06909 Bernadette Gaestel vs Aven Financial Inc., et al.

Demurrer

Defendant's demurrer to the fourth cause of action is SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

Plaintiff's fourth cause of action as alleged is vastly similar to that of seeking contempt relief under 11 U.S.C. § 524. The exclusive remedy for such is civil contempt enforced through the bankruptcy court that issued the discharge order. As Plaintiff has alleged in their opposition that the defect may be cured through amendment and has provided details on how they might cure the defect, leave to amend is granted.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

26CV-01425

Yumeng Chen vs Sungrow USA Corporation, et al.

Motion to Strike Portions of Plaintiff's First Amended Complaint

Defendant's motion to strike the prayer for punitive damages in the first amended complaint is GRANTED WITH LEAVE TO AMEND.

Plaintiff does not plead sufficient facts under Civil Code section 3294 to support a prayer for punitive damages. Accordingly, the court strikes Prayer No. 3 (FAC, 22:21, No. 3) from the first amended complaint. As the defect may be cured by alleging additional facts, leave to amend is granted.

Plaintiff may file their amended complaint to allege additional facts to support punitive damages at any time more than six (6) months before trial.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

26CV-03229

Caliber Contracting Services, Inc. vs County of Merced, et al.

Order to Show Cause re: Preliminary Injunction

Appearance required. Hearing will commence upon completion of the remaining matters on the 8:15 a.m. calendar.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 09, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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24CV-04467	LVNV Funding LLC vs. Marlene Duarte
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Case Management Conference

Appearance required.

25CV-04006	Jefferson Capital Systems, LLC vs. Maria Ayala Sanchez
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Motion for Order Deeming Admitted Requests for Admissions

The unopposed motion by plaintiff Jefferson Capital Systems, LLC for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Maria Ayala Sanchez is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served responses to the requests for admission. The Court notes that Plaintiff did not request monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

25CV-06148

Crown Asset Management, LLC vs. Kathleen Ferrell

Order to Show Cause Why Monetary Sanctions Should Not Be Imposed on Defense Counsel
for Failure to Attend CMC

**The Court has reviewed the declaration submitted by defense counsel and accepts
counsel's excuse for failing to attend the case management conference on May 8, 2026.
The order to show cause is discharged.**

Case Management Conference

Appearance required.

25CV-00823

Gustavo Gonzalez, et al. vs. Agustin Ramirez

Motion to Continue Case Management Conference

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Applications Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 9, 2026
1:15 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-00343	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Application for Order Shortening Time for Hearing on Motion to Set Aside Court Judgment and for Staying Execution of Judgment

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, July 09, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-02155	Sergio Barron Aguayo vs. Mona Rivera
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Order to Show Cause Re: Restraining Order

Appearance required.

26CV-02869	Aalyiah Mitchell vs. Edward Tumacder, Senior
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Order to Show Cause Re: Restraining Order

Appearance required.
